



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9141 (EXTENSION)
ORIGINAL February 22, 1985
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9141 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 24 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Bristol Flare Corporation
Bristol, PA

July 26, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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1. **Bristol Flare Corporation, Bristol, Pennsylvania, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a marine distress signal for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of hand signal devices as flammable solid instead of class C explosives, and provides no relief from any regulation other than as specifically stated.**

2. **BASIS.** This exemption is based on an application from Bristol Flare Corporation dated August 26, 1983, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon, and supplemental letter dated February 13, 1985.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Marine distress signal classed as flammable solid.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** Hand signal device.

5. **REGULATION AFFECTED.** 49 CFR 172.101; 173.108.

6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed is as specified in 49 CFR 173.108. The marking of "HANDLE CAREFULLY-KEEP FIRE AWAY" is not required, however, the proper shipping name, "HAND SIGNAL DEVICE", is required to appear on the outside packaging. Outside packagings must bear the FLAMMABLE SOLID label.

8. **SPECIAL PROVISIONS.**

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. The marine distress signals shipped under the provisions of this exemption must conform to the description in Bureau of Explosive Report Number 69572 dated 8-17-83.

9. **REPORTING REQUIREMENTS.** Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. **EXPIRATION DATE.** September 15, 1985.

Issued at Washington, D.C.:

Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

FEB 27 1985

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

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